# STATUTORY DECLARATION

Great Eastern
An OCBC Company

Caution: If you have MORE than one Beneficiary Owner, please complete this form for each separately.

Proposal No. | | | | | | | | | | |  Policy No. | | | | | | | | | | |

**IMPORTANT NOTICE**:

**In relation to insurance contracts wholly unrelated to your trade, business or profession**

TAKE NOTE that you are under a duty to take reasonable care not to make any misrepresentation when:

(a) answering specific questions that are relevant to the decision of the insurer whether to accept the risk or not and the rates and terms to be applied; and

(b) confirming or amending any matter previously disclosed by you in relation to your insurance contract.

Your duty of disclose under Paragraph 5 of Schedule 9 of the Financial Services Act 2013 shall continue until the time the contract is entered into, varied or renewed.

**In relation to insurance contracts related to your trade, business or profession**

TAKE NOTE that you are under a duty to disclose to the insurer any matter that:

(a) you know to be relevant to the decision of the insurer on whether to accept the risk or not and the rates and terms to be applied; or

(b) a reasonable person in the circumstances could be expected to know to be relevant.

Your duty of disclose under Paragraph 4(1) of Schedule 9 of the Financial Services Act 2013 shall continue until the time the contract is entered into, varied or renewed.

If you do not understand your obligations as stated above, please seek clarification.

If you are in any doubt about whether certain facts are material, these facts should be disclosed.

STAMP DUTY
REQUIRED
RM10.00

I, the Beneficial Owner named:_____ NRIC / Passport No. _____

of the above Policy No., do solemnly and sincerely declare as follows:-

(1) The Proposer named _____ NRIC / Passport No. _____ is the Proposer of an assurance on the Life ("Life to be Assured") named _____ NRIC / Passport / BC No. _____ with Great Eastern Life Assurance (Malaysia) Berhad ("the Company"), pursuant to a Proposal For Assurance form dated (dd/mm/yyyy)_____ ("the said Assurance");

(2) I am the beneficial owner who owns and/or has effective control over the said Assurance;

(3) As the beneficial owner(s) of the said Assurance, I hereby irrevocably and unconditionally instruct and authorize the Company to deal with the Proposer for any and all aspects of the said Assurance as if the Proposer is the sole beneficial owner of the said Assurance, including without limitation, to accept and act upon any surrender of the said Assurance or any nomination or assignment made by the Proposer in accordance with the rules and procedures of the Company;

(4) In consideration of the Company agreeing, at my request, to act on my instructions as stated herein, I hereby :-

(a) agree that I shall not challenge or hold the Company liable for any actions taken by the Company in relation to the said Assurance based on the instructions given by the Proposer;

(b) agree that any payment under the said Assurance by the Company to the Proposer, the Life to be Assured, the nominee, the assignee or the estate of the Proposer/Life to be Assured, as the case may be, including without limitation, refund of excess premium (if any), payment of surrender value (if any), payment of maturity proceeds (if any), payment of death benefits (if any), shall effectively discharge the Company from all liability in respect of the payment so made; and

(c) undertake to indemnify and keep the Company fully indemnified from and against any and all losses, actions, claims, suits, demands, proceedings damages, compensation, fines, costs and expenses including legal costs in taking and defending any legal actions that the Company may incur directly or indirectly arising from or in consequence of agreeing to my request herein.

(5) I make this declaration in full knowledge and awareness of the Company's reliance on this declaration as the basis of considering acceptance of the said Assurance proposed by the Proposer;

(6) I am fully aware of and confirm my personal details as provided to the Company in the Questionnaire on Beneficial Owner form are true and accurate.

(7) I am fully aware that it is a criminal offence to make a false declaration.



**Great Eastern Life Assurance (Malaysia) Berhad (93745-A)**
Head Office: Menara Great Eastern 303 Jalan Ampang 50450 Kuala Lumpur
Tel: (603) 4259 8333 Website: greateasternlife.com

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Proposal No. | | | | | | | | | | |  Policy No. | | | | | | | | | | |

(8) **FATCA (US Foreign Account Tax Compliance Act) related clauses:**

(i) **Authorisation to disclose information to the US IRS**
In the event that the Company becomes aware that I am or have become a United States of America (US) tax obligated person, I hereby authorise the Company to disclose my personal information, including but not limited to my name, address, US tax identity number, beneficial ownership information, policy number(s), cash value (if applicable) and gross distribution of my policy(ies) held with the Company (collectively, the "Data"), to the US Internal Revenue Service (IRS) or as directed by the US IRS or such other relevant designated authority (from time to time) (the "Tax Authority").

I further understand and agree that the Tax Authority may share the Data with third parties whom they deem appropriate (wherever situated) at their sole discretion.

(ii) **Agreement to provide further information and/or update the Company**
I hereby acknowledge and agree:

(a) to inform the Company as and when my tax status and/or tax classification changes; and

(b) that I shall provide the Company with any further information relating to my status and/or classification as a US tax obligated person, as may be requested.

(iii) **Failure to provide information**
I further acknowledge and agree that failure to provide the requested information (which may include, but not be limited to, a request for W-8Ben etc) and/or the provision of false information will entitle the Company to take whatever action which it may, in its absolute discretion, deem fit.

(iv) Are you a US tax obligated person?

☐ Yes ☐ No

Note: If Yes, please provide the completed relevant US IRS documents.

And I make this solemn declaration conscientiously believing the same to be true, and by virtue of the provisions of the Statutory Declaration Act 1960.

Subscribed and solemnly declared by the above named beneficial owner,

at _____ in the state of _____ on this

day _____ of month _____ year _____

Before me,

_____ _____

Signature of Beneficial Owner  Commissioner for Oaths

Name: _____

NRIC / Passport No.: _____